

NAPCS Unionization Research — State — Charter School Overview

Rhode Island — NLRB Region 1 (Boston) Jurisdiction — June 2026

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Section 1: State Overview

State	Rhode Island
Labor Board	NLRB Region 1 (Boston) — National Labor Relations Board, Region 1, Boston
Governing Law	Federal NLRA. All 42 RI charter schools are independently incorporated nonprofits — including the 3 LEA/District-authorized schools (Apprenticeship Exploration/Cranston; Times2 x2/Providence). RI charters are treated as private employers under the NLRA. The Rhode Island State Labor Relations Board (RISLRB, R.I.G.L. Ch. 28-7) has no jurisdiction over charter school employees. RI has no Right-to-Work law.
Federal NLRB Jurisdiction	YES — NLRB Region 1 (Boston) has exclusive jurisdiction over all 42 RI charter schools. No split jurisdiction.
Right-to-Work	NOT a Right-to-Work State — Rhode Island has no right-to-work statute. RI charter school employees are private-sector employees under the NLRA; union security provisions are available in CBA negotiations. (The unresolved question in RI is whether the state teacher strike prohibition (applicable to public-sector educators under RIPLRA) applies to NLRB-organized charter school employees. Federal court proceedings pending as of May 2026.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — Secret ballot election required. No card-check available under NLRA. RI has no state public employment law applicable to these schools.
Registry Sweep	COMPLETE — May 23, 2026 — 42 charter schools searched
Research Window	May 23, 2026 (full registry sweep — NLRB R1 ADS + education press)

Section 2: Charter School Landscape

Total charter schools in Rhode Island: 42 (Charter School Registry v56 (May 2026 — all 42 open RI charter schools)). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Confirmed Union Schools — NLRB Elections (4 schools, 2024-2025)	4	9.5%	Highlander Elementary (IBEW, Sep 2024), Paul Cuffee Upper (RIFT&HP/AFT, Oct 2024), Paul Cuffee Lower (RIFT&HP/AFT, Dec 2024), Paul Cuffee Middle (RIFT&HP/AFT, Jun 2025). All via NLRB R1 secret ballot elections. All in first-contract negotiations.
Confirmed DEPENDENT — District CBA Carryover (2 schools)	2	4.8%	NEL/CPS Construction Career Academy (Cranston Teachers Alliance/AFT — Cranston LEA-authorized) and Times2 Academy (Providence Teachers Union/AFT — Providence LEA-authorized). Staff are district employees covered by district CBAs by operation of RI law. Same DEPENDENT pattern as OH, OR, MA dependent charters. CBA text confirmed available for NEL/CPS

			(CTA 2019-2022 contract). Source: NAPCS February 2026 dataset.
Confirmed CLOSED — Historical Record (1 school)	1	N/A	Academy for Career Exploration (ACE), Providence — Providence Teachers Union/AFT. Closed June 2020. Outside 3-year lookback from May 2026. NAPCS Feb 2026 data still shows ACE as open — data is stale. Documented as historical record only.
Unverified — No Confirming Evidence Found	34	81.0%	Includes all 6 Blackstone Valley Prep, all 7 Achievement First, all 2 RISE Prep, and 19 standalone independents. No NLRB R1 RC cases found. No press evidence of organizing.
Total Open RI Charter Schools	42	100%	Source: Charter School Registry v56 (May 2026). All 42 open; 0 closed within 3-year lookback window.

Charter School Enrollment

Total Charter Enrollment	13,465 students — 9.9% of state K–12 enrollment (135,978 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	9,262 students in network-affiliated schools — 68.8% of total charter enrollment
Students in Organized Charter Schools	1,557 students (11.6% of charter enrollment) — 1,381 in CMO/EMO-affiliated schools (10.3%); 176 in independently organized schools (1.3%)
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
Achievement First	CMO	7	11	—	3,200
Blackstone Valley Prep	CMO	6	6	—	2,236
Paul Cuffee School	CMO	3	3	3	790
Beacon Charter Schools	CMO	2	2	—	361
Segue Institute for Learning	CMO	2	2	—	414
RISE Prep Mayoral Academy	CMO	2	2	—	635

Highlander Charter School	CMO	2	2	1	609
Times2 Academy	CMO	2	2	1	705
Excel Academy	CMO	1	1	—	312
TOTAL — All CMO/EMO Schools in Rhode Island		27		5	9,262
of which organized (10.3% of charter enrollment)				5	1,381

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in Rhode Island. Organized network schools: 5 organized — 1,381 students in organized network schools (10.3% of total charter enrollment).

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

9 CMO (nonprofit). Approximately 15 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of June 2026.

1: Legal & Jurisdictional Framework

Federal NLRA. All 42 RI charter schools are independently incorporated nonprofits — including the 3 LEA/District-authorized schools (Apprenticeship Exploration/Cranston; Times2 x2/Providence). RI charters are treated as private employers under the NLRA. The Rhode Island State Labor Relations Board (RISLRB, R.I.G.L. Ch. 28-7) has no jurisdiction over charter school employees. RI has no Right-to-Work law. Rhode Island is not a right-to-work state (Rhode Island has no right-to-work statute. RI charter school employees are private-sector employees under the NLRA; union security provisions are available in CBA negotiations.). Charter schools in Rhode Island are subject to NLRB jurisdiction as private employers (NLRB Region 1 (Boston)). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter School Structure

Rhode Island operates 42 open-enrollment charter schools, enrolling approximately 13,465 students. 9 charter management organizations and education management organizations operate in Rhode Island. The largest networks by campus count are Achievement First (7 campuses in state), Blackstone Valley Prep (6 campuses in state), Paul Cuffee School (3 campuses in state). Approximately 15 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Rhode Island's 2024-2025 charter organizing wave generated significant regional and national press coverage. Eight primary sources documented confirmed events. The dominant outlets were Rhode Island Current (rhodeislandcurrent.com), Providence Business News (pbn.com), the Boston Globe, and GoLocalProv, plus national coverage in the IBEW Electrical Worker newsletter. Coverage peaked in November 2025 (Highlander strike) and June 2025 (Paul Cuffee full unionization). Notable items: (1) "Rhode Island law bans teacher strikes. Teachers at one charter school are challenging that." — Boston Globe, November 24, 2025. Highlander IBEW strike — federal preemption argument. RIFT&HP/AFT president says Paul Cuffee teachers also have right to strike. URL: <https://www.bostonglobe.com/2025/11/24/metro/providence-charter-school-teacher-strike-dispute-ri/> (2) "Paul Cuffee becomes first fully unionized charter school in R.I." — Providence Business News, June 4, 2025. Middle School cert completes full Paul Cuffee unionization. URL: <https://pbn.com/paul-cuffee-becomes-first-fully-unionized-charter-school-in-r-i/> (3) "Memo to public charter schools looking to unionize: Be careful what you wish for." —

Rhode Island Current, May 27, 2025. Analysis of all three organized schools in first-contract negotiations. Notes 20% per-pupil funding gap vs. district schools as complication for first-contract bargaining. URL: <https://rhodeislandcurrent.com/2025/05/27/memo-to-public-charter-schools-looking-to-unionize-be-careful-what-you-wish-for/> (4) "Providence charter school teachers vote to unionize" — Rhode Island Current, October 22, 2024. Paul Cuffee Upper School certification. URL: <https://rhodeislandcurrent.com/briefs/providence-charter-school-teachers-vote-to-unionize/> (5) "Teachers at Paul Cuffee Lower School file to unionize, joining other Providence charter schools" — Brown Daily Herald, December 2, 2024. Lower School election. Notes Upper School was first independent RI charter to unionize with RIFTHP. URL: <https://www.browndailyherald.com/article/2024/12/teachers-at-paul-cuffee-lower-school-file-to-unionize-joining-other-providence-charter-schools/> (6) "The outlook for Rhode Island's charter schools" — Boston Globe, January 8, 2025. Forward-looking analysis. RIFT&HP and NEA-RI in active conversations with other charter teachers. Mayoral academies (BVP, Achievement First) identified as harder to organize given national network backing. URL: <https://www.bostonglobe.com/2025/01/08/metro/outlook-rhode-islands-charter-schools/> (7) "Rhode Island Local Organizes Charter School Teachers" — IBEW Electrical Worker (national newsletter), April 2025. Lead organizers Michaela Wnuk and Steve Smith named. School's Highlander Folk School heritage invoked by IBEW as organizing narrative. URL: <https://ibew.org/rhode-island-local-organizes/> (8) "Providence Charter School Announces It Will Close for Multiple Days Due to Union Strike" — GoLocalProv, November 22, 2025. Highlander Elementary closed Nov 24-25, 2025. IBEW cites NLRA federal right to strike; school and RIDE Commissioner argue RI state strike prohibition applies. URL: <https://www.golocalprov.com/news/providence-charter-school-announces-it-will-close-for-multiple-days-due-to/>

Stakeholder Communications

RIFT&HP/AFT (Rhode Island Federation of Teachers and Health Professionals): Three Paul Cuffee campuses. RIFTHP.org acknowledges Paul Cuffee Upper School as the first independent RI charter to unionize with RIFT&HP. The AFT national organization has highlighted the Paul Cuffee sequential organizing campaign as a model for multi-campus charter unionization. RIFTHP president publicly stated Paul Cuffee teachers have the right to strike under NLRA, asserting federal preemption of RI's state strike prohibition. IBEW Local 2323 (Cranston, RI): Highlander Elementary. IBEW's national Electrical Worker newsletter (April 2025) featured the Highlander organizing campaign as a model for non-traditional unions entering charter school organizing. Lead organizer Steve Smith and school-based organizer Michaela Wnuk (math specialist, at Highlander since 2007) are named. IBEW explicitly invoked the school's Highlander Folk School heritage (named for the Tennessee labor movement school) in its organizing narrative. IBEW filed a federal court complaint in November 2025 asserting NLRA preemption of RI's teacher strike ban. NEA-RI: Not directly involved in any current RI charter organizing. Boston Globe (January 2025) notes NEA-RI is in conversations with other charter teachers alongside RIFT&HP, suggesting potential future campaigns. NEA drove the organizing effort at Turquoise Trail (NM) and the NM connection is noted as a model by NEA-RI. Highlander Charter School: School administration opposed the November 2025 strike, joining RIDE Commissioner Angélica Infante-Green in arguing that RI's public school teacher strike prohibition applies to charter school employees. School sought to enjoin the strike. The underlying federal preemption question (NLRA vs. RI strike ban) remains in federal court as of May 2026. No school communications indicate acceptance of strike action. Paul Cuffee School: No press statements opposing unionization found. Providence Business News (June 4, 2025) quotes were limited to union representatives. School administration is in first-contract negotiations with RIFTHP across all three campuses. Rhode Island Current (May 27, 2025) notes that the 20% per-pupil funding gap between charter and district schools is a complication in first-contract bargaining — a note attributed to school financial constraints, not to anti-union posture.

Authorizer & State Agency Positions

RIDE Commissioner Angélica Infante-Green: Publicly argued in November 2025 that RI's public school teacher strike prohibition applies to charter school employees, aligning with the Highlander school administration's position. The Commissioner's office has not issued any broader policy statement on charter school unionization. Rhode Island Council on Elementary and Secondary Education (CESE/RIDE): No public policy statements on charter school unionization identified. CESE is the authorizer for all four independently organized RI charter schools. Providence City Council: Passed a resolution in March 2025 supporting the Paul Cuffee Lower and Upper School unionizations. First known municipal government endorsement of charter school unionization in RI.

Legislative Context

RI has no equivalent of Florida's SB 256 (annual recertification), Louisiana's Act 172 (NLRB jurisdiction stripping), or any state-level anti-union charter legislation. The most significant active legal question is whether RI's public school teacher strike ban (which applies to DCPS teachers under RIPLRA) extends to charter school employees organized under NLRB. IBEW Local 2323's federal court complaint is the vehicle for resolving this question. Until resolved, the right of NLRB-organized charter school teachers to strike in RI is legally uncertain. The Providence City Council resolution (March 2025) supporting Paul Cuffee unionizations represents the only legislative/governmental position explicitly endorsing charter school organizing in RI.

Section 6: Contract & CBA Access Registry

NLRB Region 1 (Boston) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Highlander Elementary Charter School	International Brotherhood of Electrical Workers (IBEW) Local 2323	First contract under negotiation — not yet ratified N/A — first contract pending	IBEW Local 2323 (Cranston, RI) or school directly when ratified
Paul Cuffee Upper School	Rhode Island Federation of Teachers and Health Professionals (RIFT&HP)/AFT	First contract under negotiation — not yet ratified N/A — first contract pending	RIFTHP.org or school directly when ratified
Paul Cuffee Lower School	Rhode Island Federation of Teachers and Health Professionals (RIFT&HP)/AFT	First contract under negotiation — not yet ratified N/A — first contract pending	RIFTHP.org or school directly when ratified
Paul Cuffee Middle School	Rhode Island Federation of Teachers and Health Professionals (RIFT&HP)/AFT	First contract — negotiations likely just beginning N/A — first contract pending	RIFTHP.org or school directly when ratified
NEL/CPS Construction Career Academy	Cranston Teachers Alliance (AFT Local 1704)	Active — district CBA governs; 2019-2022 contract confirmed; successor period unknown 2019-2022 (confirmed); successor contract period unknown	Contract: Cranston Teachers Alliance (cta1704.org) — CONFIRMED CBA URL in NAPCS data. Check for 2022-2025 successor contract.
Times2 Academy (Elementary + Middle/High)	Providence Teachers Union (AFT Local 958)	Active — district CBA governs; contract text not yet retrieved Unknown — Providence Teachers Union contract governs; obtain from PTU (proteun.org)	Providence Teachers Union (proteun.org) — source URL in NAPCS data leads to schools directory page, not contract text. Contact PTU directly.